

coercive influence, direct or indirect, of either of the others . . . ,” *Humphrey’s Executor v. United States*, 295 U. S. 602, 629 (1935), and that “[t]he sound application of a principle that makes one master in his own house precludes him from imposing his control in the house of another who is master there.” *Id.*, at 630. See also *O’Donoghue v. United States*, 289 U. S. 516 (1933); *Springer v. Philippine Islands*, 277 U. S. 189, 201 (1928).

But the more pragmatic, flexible approach of Madison in the Federalist Papers and later of Mr. Justice Story⁵ was expressly affirmed by this Court only three years ago in *United States v. Nixon*, *supra*. There the same broad argument concerning the separation of powers was made by appellant in the context of opposition to a subpoena *duces tecum* of the Watergate Special Prosecutor for certain Presidential tapes and documents of value to a pending criminal investigation. Although acknowledging that each branch of the Government has the duty initially to interpret the Constitution for itself, and that its interpretation of its powers is due

⁵ Madison in The Federalist No. 47, reviewing the origin of the separation-of-powers doctrine, remarked that Montesquieu, the “oracle” always consulted on the subject,

“did not mean that these departments ought to have no *partial agency* in, or no *controul* over the acts of each other. His meaning, as his own words import . . . can amount to no more than this, that where the *whole* power of one department is exercised by the same hands which possess the *whole* power of another department, the fundamental principles of a free constitution, are subverted.” The Federalist No. 47, pp. 325–326 (J. Cooke ed. 1961) (emphasis in original).

Similarly, Mr. Justice Story wrote:

“[W]hen we speak of a separation of the three great departments of government, and maintain that that separation is indispensable to public liberty, we are to understand this maxim in a limited sense. It is not meant to affirm that they must be kept wholly and entirely separate and distinct, and have no common link of connection or dependence, the one upon the other, in the slightest degree.” 1 J. Story, *Commentaries on the Constitution* § 525 (M. Bigelow, 5th ed. 1905).